

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403

Meeting ID: 161 463 0304

Passcode: 114482

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPtFQ2hTaEFuZnhIZz09>

Department 404

Meeting ID: 161 305 3325

Passcode: 282709

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk0wckJSNnJwSSSttYkR6dz09>

Department 414

Meeting ID: 161 123 0725

Passcode: 040696

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

EARL HORTON,

Respondent

) Case Number: FCS-14-349893

) Hearing Date: May 28, 2026

) Hearing Time: 1:30 PM

) Department: 414

) Presiding: MUJDAH RAHIM

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Other Parent Indira Carranza Navarro (“Mother”) and Respondent Earl Horton (“Father”).
- 2) The parties have two children, Kimberly Nevaeh Horton, age 12, and Gianni Isabella Carranza, age 4.
- 3) On March 13, 2026, Mother filed a Request for Order for Change of Custody and Visitation. She is requesting sole legal and physical custody of the minor children. With respect to parenting time, Mother requests that Father have visitation every Saturday from 9:00 a.m. to 8:00 p.m.
- 4) The current custody order awards parties joint legal and physical custody. Under the current order, Father’s parenting time is from Thursday at 9:00 a.m. to Sunday at 9:00 a.m.
- 5) Mother seeks modification of the current custody and visitation order based on concerns regarding Father’s living situation, possible drug use, and his failure to consistently exercise his parenting time. Specifically, Mother sates that Father frequently asks her to pick up the children early on Thursdays, which she reports occurs approximately two to three times per month.

1 Mother further alleges that Father is habitually late returning the children on Sundays, which
2 interferes with Mother's and the children's ability to attend church services.

3 6) A valid proof of service for Mother's Request for Order is on file.

4 7) Father has not filed a Response to Mother's Request for Order.

5 8) The parties had separate mediation appointments and did not reach an agreement.

6 9) At the Readiness Hearing, on April 13, 2026, the parties stipulated to the matter being heard by
7 Commissioner Mujdah Rahim, and the matter was continued to May 28, 2026, at 1:30 p.m. in
8 Department 414.

9 10) The Court notes that San Francisco Department of Child Support Services (SF DCSS) is a party
10 to this action. However, given child support is not at issue, SF DCSS's appearance is not required
11 for purposes of this proceeding.

12 **B. Findings and Order**

13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act.

15 2) The parties have two children together, Kimberly, age 12, and Gianni, age 4.

16 3) Based on the evidence presented, the Court finds that it is in the child's best interest to order as
17 follows:

18 4) Mother's request for sole legal and physical custody is DENIED without prejudice. The Court
19 finds that Mother did not meet her burden for the Court to grant her request.

20 5) As to Father's parenting time, the Court orders his visitation from Thursday at 9:00 a.m. to
21 Saturday 8:00 p.m.

22 6) Father is ordered to provide and maintain appropriate beds for the minor children in his home.

23 7) The parties may not consume alcoholic beverages, narcotics, or restricted dangerous drugs
24 (except by prescription) within 24 hours before or during periods of time with the children.

25 8) All prior orders not in conflict with this order remain in effect.

26 9) The Court will prepare the Findings and Order After Hearing.
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